

Agent Selection & Commission Negotiation Checklist — ACT

Choosing the right agent, and understanding what you're actually agreeing to.

Correct as at July 2026. General information only, not legal advice.

Section 1 — Shortlisting Agents

- ☐ [] **Interview at least 3 agents** and compare their recent comparable sales in your specific Canberra suburb or district.
- ☐ [] **Ask for a genuine appraisal, not just the highest number** — cross-check against real recent comparable sales.
- ☐ [] **Ask how they'll market the property** and get this in writing.
- ☐ [] **Check their recent track record for your specific property type** — including whether they have genuine experience with leasehold/Crown lease sales specifics.
- ☐ [] **Ask directly about any referral relationships** with conveyancers, stylists, or other service providers, and whether they receive a fee for those recommendations.

Section 2 — Understanding the Agency Agreement

- ☐ [] **Understand this is a legally binding contract** — read every clause, not just the commission rate.
- ☐ [] **Confirm the commission rate is negotiable** — it isn't fixed or regulated at a set percentage.
- ☐ [] **Clarify exclusive vs. open listing terms** and how long any exclusive period runs.
- ☐ [] **Check marketing cost responsibility** — confirm upfront whether costs are included in commission or charged separately, in writing.

Section 3 — Understanding Your Buyer's New Financial Position

- ☐ [] **Understand many of your buyers may now be eligible for the new stamp duty abolition** (if they're first home buyers, or buying a new unit-titled property) — this can meaningfully change buyer budgets and should factor into your agent's pricing strategy and marketing.
- ☐ [] **Discuss with your agent how the 1 July 2026 reform might affect buyer demand and pricing** for your specific property, particularly if it's a new or off-the-plan unit that could qualify for the expanded exemption.

Section 4 — Choosing Your Method of Sale

- ☐ [] **Compare auction vs. private treaty for your specific property and market conditions.**
- ☐ [] **If going to auction, understand there's no cooling-off period for the buyer** once the hammer falls.

Section 5 — Before You Sign

- ☐ [] **Have a solicitor review the agency agreement** if you're at all uncertain.
- ☐ [] **Clarify the termination process** — what happens if you want to change agents partway through the listing period.
- ☐ [] **Confirm who's preparing your contract and disclosure documents**, and organise this in parallel with appointing your agent.
- ☐ [] **Ask for references from recent vendors**, not just buyer testimonials.

Quick Reference — Key ACT Agent Agreements

ITEM	DETAIL
Commission rates	Not fixed/regulated — negotiable
Buyer stamp duty exemption	May apply broadly since 1 July 2026 — relevant to your pricing strategy
Cooling-off period	5 business days (private treaty), none at auction

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